

Cal.App.5th 827, 835-839, which while granted review by California Supreme Court still stands as citable persuasive authority pending that review, per 2026 Cal.LEXIS 1392.

The court also notes that Plaintiff earlier obtained a fee waiver order, and thus did not pay a filing fee or incur any other reasonable expense to file this motion.

Finally, unlike the cases cited by Plaintiff's motion, largely from courts other than California state courts, that imposed sanctions and/or reported incidents to the State Bar, involving repeated instances of very offensive words and/or conduct, the court finds that the sole comment at issue in this motion was not sufficiently egregious to warrant issuance of sanctions or reporting to the State Bar.

Thus, for many independent reasons, this motion is denied in its entirety.

Despite the inability of counsel against whom this motion was filed to remember the incident at issue, the court appreciates his willingness to apologize for the subject statement. Litigants, and counsel, are human, and the court does not expect that human emotions such as frustration will not at times be stirred up in litigation. However, it is in the best interest of all to avoid making statements that could be reasonably interpreted to be disrespectful.

9:30 a.m. CALENDAR

LINE

2

**IN THE MATTER OF THE LITTLE TREE TRUST DATED 9/24/1999
FPR050043**

Trustee's Report, Fourth and Final Account, and Petition for Allowance of Fees and Distribution of Trust [Probate Code §17200; Solano County Superior Court Local Rules 7.100-7.106]

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed. The fourth and final accounting is approved and settled. The trustee is approved to pay \$4,153.75 and \$79.05 in attorney fees and costs incurred in the conservatorship proceeding. The trustee is further approved to pay \$8,087.50 and \$542.66 for attorney fees and costs in this trust matter. The trustee is directed to distribute the trust estate pursuant to the terms of The Little Tree Trust and its amendments.
